

		For these reasons, the motion is GRANTED. Plaintiff is ordered to appear for a deposition within 15 days of this order and/or at mutually agreeable date and time. <u>Sanctions</u> Code of Civil Procedure section 871.26, subdivision (j) states in part: (j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: [¶.] (2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c). (3) For a plaintiff's repeated noncompliance with subdivision (b), (c), or (d), a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer. Code Civ. Proc., § 871.26 (Code Civ. Proc. § 871.26, subd. (j)(2), (3).) Plaintiff's counsel has only stated that in June 19, 2026, Plaintiff's counsel offered dates for depositions in August 2026. (Opp. Smith Decl., ¶ 4). Nowhere in Plaintiff's counsel's declaration has Plaintiff justifiably explain the failure to comply. There is no justification for the delays, despite Defendant's already sending a meet/confer letter notifying Plaintiff of his obligations under section 871.26. Sanctions under section 871.26(j)(2) are, therefore, mandatory under the circumstances here. Plaintiffs' counsel, Strategic Legal Practices, APC, is ordered to pay monetary sanctions in the amount of \$1,500 payable to Defendant within 30 days of the service of the notice of ruling. Defendant to give notice.
5	Lopez vs. Cross Roads Apartments	Defendant FDK Enterprises LP A Calif Ltd Partnership Magellan Management LLC dba Cross Roads Apartments moves for an order establishing the truth of each matter specified in the Request for Admissions, Set One, served on plaintiff Tina Lopez. For the following reasons, the motion is GRANTED. Plaintiff shall pay monetary sanctions of \$525 to Defendant by August 6, 2026.